GRAPHITE PETROLEUM (PRIVATE) LIMITED
versus
BLESSING MUTSENGI
and
LAIZA DOBI
and
THE SHERIFF FOR ZIMBABWE

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 12 and 17 March 2026

Opposed Application

R. Mutero, for the applicant
S. Kuchena, for 1st and 2nd respondents

MAMBARA J:

Introduction

[1] This is an opposed application for a stay of execution. The applicant seeks an order suspending execution of a default judgment that compels it to transfer immovable property to the 1st and 2nd respondents, pending the final determination of rescission-related proceedings that are said to place the basis for execution in dispute.

[2] The order sought to be stayed is, in substance, one directing transfer of a property described as Stand Number 3473 Warbury Road, Malbereign, Harare, measuring 1238 square metres, into the names of the 1st and 2nd respondents within a stipulated period; failing compliance, the Sheriff is authorized to sign transfer documents; and costs were awarded on a punitive scale.

[3] The applicant's case is that, after the default judgment, it pursued rescission-related remedies which, though met with procedural difficulties and adverse interlocutory outcomes, remain alive in a pending matter. It apprehends that if transfer is perfected now, the dispute will be rendered practically academic and restitution will become difficult.

[4] The applicant further avers that in late January 2026 it became aware of renewed steps toward transfer, including pursuit of a rates clearance certificate from the City of Harare, and that it acted promptly thereafter to preserve the status quo.

[5] The respondents oppose the stay. They raise objections that the draft relief is incompetent or defective, that the applicant comes with "dirty hands" due to non-compliance with past costs orders, and that the applicant should be compelled to furnish security for costs.

[6] The issues for determination are:

(a) whether the points in limine are dispositive; and

(b) whether, on the merits, the applicant has shown grounds for this court to exercise its discretion to stay execution.

The law governing stay of execution

[7] The starting point in this jurisdiction is settled. Execution is a process of the court; the court retains an inherent power to regulate its own process and may suspend execution where real and substantial justice so requires. The discretion is wide but must be exercised judicially. The general rule remains that a successful litigant is entitled to the fruits of judgment, and the party seeking a stay bears the onus of showing special circumstances.

[8] Importantly, "special circumstances" are more readily found where the judgment concerns ejectment or transfer of property, because carrying the judgment into operation may render restitution of the original position difficult. This proposition has repeatedly been applied in Zimbabwean stay jurisprudence.

[9] A stay sought pending rescission (or pending proceedings which may revive or enable rescission) is not granted for the asking. The court must be satisfied that the pending challenge is bona fide and that execution carries a genuine risk of producing an injustice that cannot adequately be cured later. In evaluating whether real and substantial justice demands intervention, the court may have regard to factors typically encountered in interim protective relief, while keeping in view that the enquiry remains one of averting injustice rather than determining the main dispute.

[10] Comparative authority is consistent. Under South African Uniform Rule 45A, the court may suspend execution, but will not do so for speculative reasons: a sound factual and legal basis must be shown, and a stay is particularly apposite where the underlying causa is the subject of an ongoing dispute between the parties. Likewise, Commonwealth authority recognizes that the court should, where justice requires, ensure that a challenge is not rendered nugatory by premature enforcement.

Points *in limine*

[11] I deal briefly with the preliminary objections.

[12] On the alleged incompetence of relief and defects in the draft order: the court is concerned with substance. The relief sought is identifiable—namely, suspension of execution of the transfer order pending determination of pending proceedings. Minor drafting infelicities, typographical errors, or inelegant cross-references do not, without more, defeat a claim for interim protection where the intended order is clear. Authority cited to me supports the proposition that a draft order remains a draft and is not itself determinative; the substance of the relief sought governs. The citation for that authority, as placed before the court, is *Mabhena* v *Mbangami* HB57/18.

[13] On "dirty hands" and non-compliance with costs orders: the principle that litigants should not seek the court's indulgence while in deliberate defiance of court orders serves an important purpose in protecting the integrity of the judicial process. The respondents relied on authorities including *Deputy Sheriff, Harare* v *Mahleza & Anor* 1997 (2) ZLR 425 (H), *Underhay* v *Underhay* 1977 (4) SA 23 (W) at 24E -F, and *Martin C. Nhapata* v *Christopher Maswi & Maidei Maswi* SC 38/16, among others.

[14] However, the "dirty hands" doctrine should not be mechanistically applied so as to defeat, in limine, an application whose object is to obtain a lawful suspension of execution pending the ventilation of a challenge that is still being prosecuted. The court must guard against allowing its process to be used to produce irreversible outcomes that would stifle pending proceedings. The applicant's contention is that tendering transfer now would

effectively pre-empt its challenge; authority cited to me, *Dhliwayo* v *Warman (Private) Limited* HB 12/22, was relied upon in support of that submission.

[15] The correct approach is to evaluate, in the concrete circumstances of this case, whether the balance of justice supports preserving the *status quo* while imposing conditions that prevent abuse. This is particularly so where the relief sought is interim and is designed to avoid irreparable consequences, rather than to confer final advantage.

[16] On security for costs: the respondents ask for security, referencing an alleged *nulla bona* return and asserting risk of non-recovery. The applicant disputes both the procedural basis and the quantum sought. While security may be an appropriate condition in certain cases, it is not a rigid prerequisite for a stay. In the present matter, the proportionate means to mitigate prejudice lies in tight time limits and in an appropriate costs order, rather than in converting the stay into a security contest on disputed material.

[17] In the result, none of the preliminary objections is dispositive. The matter must be determined on the merits.

Application of the law to the facts

[18] Several features of this case, taken together, constitute special circumstances that justify intervention.

[19] First, the order sought to be executed concerns transfer of immovable property. Once transfer is registered and real rights are conveyed, the practical obstacles to restoration are obvious. The risk of third-party complications through bonding, sale, or further dealings increases the potential for irreparable prejudice and procedural complexity. Zimbabwean authority treats this category—ejectment and transfer—as one where special reasons against immediate execution are more readily found.

[20] Second, the applicant has placed before the court a litigation pathway culminating in pending rescission-related proceedings. I do not determine the merits of those proceedings. I am satisfied, however, that they are not merely hypothetical, and that they are said to bear directly on whether the applicant will yet obtain the opportunity to have the default judgment

reopened or its procedural consequences undone. In such circumstances, the court must be alive to the danger that execution will render the pending proceedings hollow.

[21] Third, the prejudice analysis favours preservation. The respondents' prejudice lies primarily in delay in attaining finality and formal title; that prejudice is real but can be mitigated. Conversely, the applicant's prejudice, if transfer proceeds and is registered, may be irremediable or only remediable through costly and uncertain further litigation.

[22] Fourth, the respondents emphasize delay and past procedural defaults. Delay is relevant because it may signal abuse. But the appropriate judicial response is not always outright refusal, especially where immovable property is at stake and the causa is still said to be in dispute. In such cases, the discretion can be exercised in a manner that both protects the respondents and prevents injustice—by granting a stay on strict, enforceable conditions.

[23] Fifth, I have considered the argument that the dispute is moot because transfer documentation is already advanced. That argument cannot prevail as a general answer to a stay application: it is precisely because an execution process may be approaching irreversibility that the court's intervention becomes most necessary. The question is whether the court should arrest the process now to preserve the efficacy of pending proceedings.

[24] Taking all matters into account, I am satisfied that real and substantial justice requires a stay. The court's discretion should be exercised to preserve the subject matter and prevent the pending proceedings from being rendered nugatory.

[25] The stay will be conditioned by strict time limits to ensure expeditious prosecution of the pending matter, and to protect the respondents against open-ended delay.

In the result, it is ordered as follows:

1. Execution of the judgment/order granted under HCH4599/21 directing transfer of Stand Number 3473 Warbury Road, Malbereign, Harare, measuring 1238 square metres, into the names of the 1st and 2nd respondents is hereby stayed, pending the final determination of HCH6399/25 and any consequential proceedings directly arising therefrom that place in dispute the causa for execution.

2. The 1st and 2nd respondents, and the 3rd respondent, are interdicted from taking any further steps to perfect transfer or otherwise execute the said order, including presenting, lodging, or procuring registration of transfer documentation, pending final determination of the proceedings identified in paragraph [1].
3. Costs of this application shall be costs in the cause

MAMBARA J…….

Gijima, Gashirai Gatawa, applicant's legal practitioners
L.T. Muringani Law Practice, 1st and 2nd respondents' legal practitioners